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From Tariff to Award

Determinants of Court-Awarded Litigation Costs in Swiss Commercial Courts

Litigants before Swiss commercial courts face material cost uncertainty. Statutory tariffs provide a starting point, but actual court costs and party compensation are shaped by judicial discretion. This paper provides the first empirical analysis of this cost-setting practice. Drawing on 976 published ordinary, non-settled judgments from the commercial courts of Zurich and Aargau (2011-2025), with supplementary descriptive evidence from Bern, it estimates log-linear models that relate actual costs to cantonal tariff baselines, case characteristics, and procedural indicators. The results reveal systematic tariff compression: a 10% increase in the base tariff is associated with only approximately 8.9% higher court costs and 8.3% higher party compensation. The strongest driver of cost deviations for court costs is procedural complexity. A second exchange of written submissions alone is associated with approximately 65% higher costs relative to the tariff. For party compensation, the tariff, the canton, and the litigation outcome dominate, though these findings are substantially less stable than those for court costs. Even in the full model, roughly half the variance in both cost components remains unexplained by observable characteristics. An ex ante model using information available at the time of filing achieves an in-sample median forecast accuracy of approximately ±21% for court costs and ±26% for party compensation, providing an empirically grounded benchmark for litigation cost budgeting, provisioning, and the settlement calculus. The analysis is descriptive, and the results are conditional on the published subset of judgments.

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